

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, SEPTEMBER 22, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**NAESHA MCREE WELLS v. CITY OF FAIRFIELD et al.
Case No. CU25-05032**

Plaintiff's Motions to Compel I.M.'s Further Responses to Form Interrogatories, Set One and Special Interrogatories, Set One

TENTATIVE RULING

Plaintiff NAESHA MCREE WELLS moves to compel Defendant I.M. ENTERPRISING ("I.M.") to further respond to one form interrogatory from her first set and three special interrogatories from her second set.

Meet and Confer Efforts. The court first considers the adequacy of the moving party's efforts to meet and confer to work discovery issues out before resorting to a motion to compel further responses. Code of Civil Procedure section 2016.040 requires a declaration "showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion" to compel. Plaintiff's counsel's attached declaration in support of the motion states that counsel served the discovery requests at issue on November 14, 2025. (Declaration of Arash Nematollahi in Support of Motion to Compel Further Responses to Special Interrogatories ("Nematollahi Dec.") at ¶ 3.) I.M. responded on January 22, 2026. (*Id.* at ¶ 4.) On February 2, 2026 Plaintiff sent a meet and confer letter. (*Id.* at ¶ 6, Exhibit 3.) I.M. never responded. (*Id.* at ¶ 7.) The instant motions were filed on March 9, 2026.

The trial court has discretion in determining whether adequate meet and confer efforts preceded the filing of the motion. (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424 [factors include complexity of discovery issues, history of counsel in prior disputes, judge's gut feeling; sending one brief letter 13 days prior to deadline to file motion was not sufficient attempt].) The court finds Plaintiff made sufficient efforts to meet and confer in good faith.

Analysis. I.M. concedes the discoverability of the insurance information Plaintiff requests in its opposition brief, stating it will provide supplemental responses. (Opposition at 2:6-8.)

Code of Civil Procedure section 2030.300, subdivision (d) requires sanctions against a party that unsuccessfully makes or opposes a motion to compel further responses to interrogatories, unless the court finds that the losing party acted with substantial justification or that other circumstances weigh against the imposition of sanctions. The court finds sanctions of \$250 per motion, for a total of \$500, appropriate in the circumstances.

Conclusion. Plaintiff's motion is granted. I.M. is ordered to serve supplemental responses to all interrogatories at issue before October 15, 2026. Sanctions are imposed in the total amount of \$500, due and payable by October 15, 2026.

BRODERICK v. STAVRINIDES
Case No. cu25-07061

Motion by Respondent to Vacate Paragraph (4)(b)(1) Portion of the May 26, 2026 Order on Request to Continue Hearing

TENTATIVE RULING

This court was assigned the Civil Harassment Restraining Order (CHRO) case filed by Sonoma County Judge PATRICK M. BRODERICK ("Petitioner") against ELIAS STAVRINIDES ("Respondent"). Its jurisdiction is therefore limited to resolving this case, and no others.

Although titled as a motion to vacate the May 26, 2026 court order extending the Temporary Restraining Order ("TRO") until the January 20, 2027 status review conference, Respondent's motion included arguments about the vexatious litigant order and other activity in an earlier-filed Sonoma County civil case, as well as the anti-SLAPP motion earlier denied in this CHRO case.

This court has no jurisdiction over the earlier-filed Sonoma County case, or the federal court case filed by Respondent against Petitioner and others.